

RECEIVED

**NOTICE OF SUBSTITUTE TRUSTEE'S SALE**

MAY 11 2026

KARA SANDS  
CLERK OF THE COUNTY COURT  
NUECES COUNTY, TEXAS

**RECITALS**

By Deed of Trust dated May 21, 2025 recorded under Instrument No. 2025018680 in the Official Public Records of Nueces County, Texas (the "Deed of Trust"), to which record reference is here made for all purposes, Plutus Properties, LLC (hereinafter called the "Mortgagor" whether one or more) granted, sold and conveyed to the Trustee named therein the Real Property described in Exhibit "A" attached hereto and made a part hereof for all purposes (said Real Property, together with any and all affixed buildings, improvements, fixtures, personal property, leases and rents from the Real Property, all easements, rights of way, and appurtenances, all water rights, and all other rights, royalties, and profits relating to the Real Property, including without limitation such rights as Mortgagor may have in all minerals, oil, gas, geothermal and similar matters, being collectively referred to herein as the "Property"), in order to secure payment of Promissory Note dated May 21, 2025, in the original principal sum of \$276,000.00 executed by Plutus Properties, LLC and made payable to the order of Simmons Bank (said promissory note, as modified or extended by any modifications or extensions thereof, being herein referred to as the "Note"), and payment of any and all other indebtedness secured by and described in the Deed of Trust.

Simmons Bank (hereinafter called "Beneficiary"), is the present legal owner and holder of the Note and the beneficiary of the Deed of Trust.

Pursuant to authority granted in the Deed of Trust, Beneficiary did appoint and designate the undersigned whose street address is 6700 N. New Braunfels Avenue, San Antonio, Texas 78209, as Substitute Trustee to act under the Deed of Trust instead of the original Trustee named therein.

The Note is in default and the entire unpaid balance thereof is due and payable and Beneficiary has demanded payment from the Mortgagor and intends to have the power of sale set forth in the Deed of Trust enforced.

Beneficiary has directed the undersigned, as Substitute Trustee, to enforce the power of sale granted under the Deed of Trust over the Property for the purpose of collecting the indebtedness secured thereby, after giving notice of the time, place and terms of such sale and of the property to be sold in compliance with the terms of the Deed of Trust and the laws of the State of Texas.

In accordance with the foregoing, I hereby give notice as set forth below.

**NOTICE**

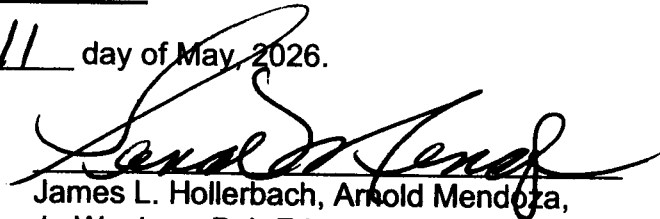
I, James L. Hollerbach, Arnold Mendoza, Jo Woolsey, Bob Frisch, Sandra Mendoza, Jodi Steen, Adolfo Rodriguez, Leslye Evans or Alexis Mendoza, Substitute Trustee, hereby give notice that, after due publication of this Notice by posting it at the courthouse door of Nueces County, Texas at least twenty-one (21) days preceding the

date of the foreclosure sale of the Property (as stated below), and after having filed this Notice in the Foreclosure Records of Nueces County, Texas, at least twenty-one (21) days preceding the date of such sale, and after having given written notice at least twenty-one (21) days preceding the date of such sale by certified mail to each debtor obligated to pay the Note and the indebtedness secured by the Deed of Trust at the address of each such debtor according to the records of Beneficiary as required by the Deed of Trust and the laws of the State of Texas, I will sell the Property at public auction to the highest bidder or bidders for cash at the Courthouse Door designated as the South Entrance of the Nueces County Courthouse facing Lipan Street, Corpus Christi, Texas or as designated by the County Commissioner's Office at 10:00 a.m. (at the earliest), or within three (3) hours thereafter, on June 2, 2026, that being the first Tuesday of that month.

The Deed of Trust may encumber both real and personal property. Notice is hereby given of Beneficiary's election to proceed against and sell both the real property and any personal property described in the Deed of Trust in accordance with Beneficiary's rights and remedies under the Deed of Trust and section 9.604(a) of the Texas Business and Commerce Code.

**Assert and protect your rights as a member of the armed forces of the United States. If you are or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active duty military service to the sender of this notice immediately. The sender of the Notice is Diann M. Bartek and can be notified of the active duty military service at 112 E. Pecan, Suite 1800, San Antonio, Texas 78205.**

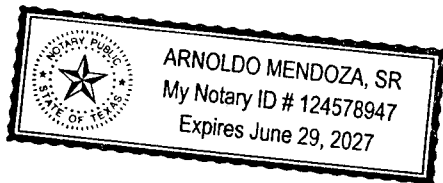
Executed in multiple originals on this 11 day of May, 2026.



James L. Hollerbach, Arnold Mendoza,  
Jo Woolsey, Bob Frisch, Sandra  
Mendoza, Jodi Steen, Adolfo Rodriguez,  
Leslye Evans and Alexis Mendoza,  
Substitute Trustee  
6700 N. New Braunfels Avenue  
San Antonio, Texas 78209

STATE OF TEXAS       §  
                                     §  
COUNTY OF DUKE §

This instrument was acknowledged before me on the 11<sup>th</sup> day of May, 2026, by James L. Hollerbach, Arnold Mendoza, Jo Woolsey, Bob Frisch, Sandra Mendoza, Jodi Steen, Adolfo Rodriguez, Leslye Evans or Alexis Mendoza, Substitute Trustee, on behalf of said Trust.



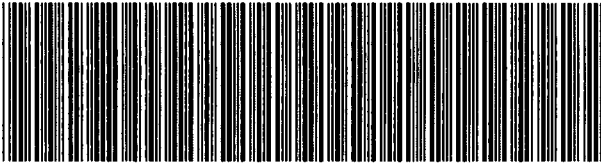
  
\_\_\_\_\_  
Notary Public, State of Texas

**REAL PROPERTY DESCRIPTION**

Lot Nine (9), Block Three (3), OCEAN TERRACE, a subdivision of the City of Corpus Christi, Nueces County, Texas, as shown by the map or plat thereof recorded in Volume 18 Page 38, Map Records of Nueces County, Texas.

Commonly known as 430 Troy Dr., Corpus Christi, Texas, 78412-2716

Exhibit "A"



\*VG-38-2026-2026000280\*

**Nueces County  
Kara Sands  
Nueces County Clerk**

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**Instrument Number:** 2026000280

Foreclosure Posting  
FORECLOSURE NOTICE

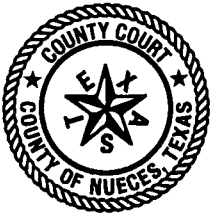
Recorded On: May 11, 2026 03:53 PM

Number of Pages: 5

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**" Examined and Charged as Follows: "**

Total Recording: \$7.00



**STATE OF TEXAS  
Nueces County**

**I hereby certify that this Instrument was filed in the File Number sequence on the date/time printed hereon, and was duly recorded in the Official Records of Nueces County, Texas**

Kara Sands  
Nueces County Clerk  
Nueces County, TX

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**\*\*\*\*\* THIS PAGE IS PART OF THE INSTRUMENT \*\*\*\*\***

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

**File Information:**

Document Number: 2026000280  
Receipt Number: 20260511000206  
Recorded Date/Time: May 11, 2026 03:53 PM  
User: Lisa C  
Station: CLERK06

**Record and Return To:**

PIONEER LAND SERVICES  
3737 REYNOSA ST  
  
CORPUS CHRISTI TX 78416-1528